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**Subject: State aid SA.63934 (2021/N) – Hungary**  
**Regional aid map for Hungary (1 January 2022 – 31 December 2027)**

Excellency,

**1. PROCEDURE**

- (1) On 19 April 2021, the Commission adopted the Guidelines on Regional State Aid<sup>1</sup> that it will use to assess the compatibility of all notifiable regional aid awarded or intended to be awarded after 31 December 2021 (hereinafter "RAG"). Pursuant to paragraph 189 of the RAG, each Member State should notify to the Commission a single regional aid map applicable from 1 January 2022 to 31 December 2027. All approved regional aid maps will be published in the *Official Journal of the European Union* (summary information) and on the website of DG Competition<sup>2</sup> (full text) and will constitute an integral part of the RAG.
- (2) By electronic notification dated 2 July 2021, registered at the Commission on the same day (2021/070446), the Hungarian authorities notified, following the procedure of Article 108(3) of the Treaty on the Functioning of the European Union (hereinafter "TFEU"), their proposal for the Hungarian regional aid map applicable from 1 January 2022 to 31 December 2027.

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<sup>1</sup> OJ C 153, 29.04.2021, p.1.

<sup>2</sup> <http://ec.europa.eu/competition/elojade/isef/index.cfm>

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- (3) On 26 July 2021, the Commission requested additional information (2021/079288), which was provided by the Hungarian authorities on 27 July (2021/079215).

## **2. DESCRIPTION OF THE NOTIFIED REGIONAL AID MAP**

- (4) The territory of Hungary consists of eight NUTS 2 regions. According to Annex I to the RAG, seven of those NUTS 2 regions are eligible for aid under Article 107(3)(a) TFEU (hereinafter ‘a’ areas). Since Hungary has not been assigned any further coverage for the designation of areas under Article 107(3)(c) TFEU, the remaining NUTS 2 region, HU11 Budapest, is not eligible for regional aid.

### **2.1. Proposed ‘a’ areas**

- (5) In their notification, the Hungarian authorities propose the NUTS 2 regions of HU12 Pest, HU21 Közép-Dunántúl, HU22 Nyugat-Dunántúl, HU23 Dél-Dunántúl, HU31 Észak Magyarország, HU32 Észak-Alföld and HU33 Dél-Alföld under the derogation of Article 107(3)(a) TFEU to be assisted as ‘a’ areas from 1 January 2022 to 31 December 2027.
- (6) The Hungarian authorities propose to apply a maximum aid intensity for large enterprises amounting to 50% in HU12 Pest, HU23 Dél-Dunántúl, HU31 Észak Magyarország, HU32 Észak-Alföld and HU33 Dél-Alföld, and 30% in HU21 Közép-Dunántúl and HU22 Nyugat-Dunántúl for the entire period from 1 January 2022 to 31 December 2027.
- (7) In their notification, the Hungarian authorities announce their intention to make use of an increase of the maximum aid intensities for territories that would be identified for support from the Just Transition Fund.

### **2.2. Maximum aid intensities for SMEs**

- (8) In their notification, the Hungarian authorities propose that the maximum aid intensities for large enterprises can be increased by 10 percentage points for medium-sized enterprises and by 20 percentage points for small enterprises for their initial investments with eligible costs up to EUR 50 million.

## **3. ASSESSMENT**

### **3.1. The proposed ‘a’ areas and the proposed maximum aid intensities**

- (9) According to paragraph 158 of the RAG, the NUTS 2 regions that have a GDP per capita below or equal to 75% of the EU27 average fulfil the conditions of Article 107(3)(a) TFEU. The areas proposed by the Hungarian authorities to be assisted as ‘a’ areas for the period 1 January 2022 to 31 December 2027 are the following NUTS 2 regions: HU12 Pest, with a GDP of 55.00% of the EU27 average, HU21 Közép-Dunántúl, with a GDP of 65.33% of the EU27 average, HU22 Nyugat-Dunántúl, with a GDP of 72.67% of the EU27 average, HU23 Dél-Dunántúl, with a GDP of 47.33% of the EU27 average, HU31 Észak Magyarország, with a GDP of 47.67% of the EU27 average, HU32 Észak-Alföld with a GDP of 44.33% of the EU27 average and HU33 Dél-Alföld with a GDP of

50.00% of the EU27 average. These areas therefore fulfil the conditions of Article 107(3)(a) TFEU.

- (10) Paragraph 179 of the RAG provides that the maximum aid intensity for large enterprises in 'a' areas with a GDP per capita below or equal to 55% of the EU27 average must not exceed 50%. In the 'a' areas with a GDP per capita above 65% of the EU27 average, the aid intensity for large enterprises must not exceed 30%.
- (11) For the regions of HU12 Pest, HU23 Dél-Dunántúl, HU31 Észak Magyarország, HU32 Észak-Alföld and HU33 Dél-Alföld, the Hungarian authorities propose a maximum aid intensity for large enterprises of 50%. For the regions of HU21 Közép-Dunántúl and HU22 Nyugat-Dunántúl, the Hungarian authorities propose a maximum aid intensity for large enterprises of 30%. Given the GDP per capita of each of these 'a' areas, respectively 55.00%, 47.33%, 47.67%, 44.33%, 50.00%, 65.33% and 72.67% of the EU27 average, the proposed aid intensities are in line with the provisions of the RAG.
- (12) The Hungarian authorities announced their intention to make use of an increase of the maximum aid intensities for territories that would be identified for support from the Just Transition Fund. The Commission considers that, since the Commission has not yet approved a territorial just transition plan for Hungary, this potential increase cannot be included in the regional aid map at this point in time. However, according to paragraph 87 of the RAG, the Hungarian regional aid map can be updated once a territorial just transition plan has been approved by the Commission. The Hungarian authorities are invited to notify to the Commission such future amendment.

### **3.2. Increased aid intensities for SMEs**

- (13) In accordance with paragraph 186 of the RAG, the maximum aid intensities for large enterprises may be increased by up to 20 percentage points for small enterprises or by up to 10 percentage points for medium-sized enterprises. However, the increased maximum aid intensities for SMEs will not apply to aid awarded for large investment projects in the meaning of paragraph 19(18) of the RAG.

### **3.3. Other commitments made by the Hungarian authorities**

- (14) The Commission takes note of the following commitments made by the Hungarian authorities in the notification:
  - (a) The Hungarian authorities confirmed that all intentions to grant regional aid will be notified to the Commission in accordance with Article 108(3) of the TFEU, either as an aid scheme, or as an individual notification, unless a block exemption regulation applies.
  - (b) The Hungarian authorities confirmed that all regional investment aid will respect the maximum aid intensities of the region concerned as defined in the regional aid map approved and published by the Commission
  - (c) The Hungarian authorities confirmed that for large investment projects (as defined in paragraph 19(18) of the RAG) the aid ceilings of the region concerned, as defined in the regional aid map approved and published by

the Commission, will be adjusted according to the formula in paragraph 19(3) of the RAG.

### **3.4. General conclusion**

- (15) In view of the above, the Commission takes the view that the Hungarian regional aid map notified for the period from 1 January 2022 to 31 December 2027 is in line with the RAG.

## **4. CONCLUSION**

- (16) The Commission has accordingly decided:
- to approve the Hungarian regional aid map set out in the Annex for the period from the 1 January 2022 till 31 December 2027, as it fulfils the conditions laid down in the Guidelines on Regional State Aid, as adopted on 19 April 2021.
  - The full text of this letter in the authentic language will be published on the following Internet site:  
<http://ec.europa.eu/competition/elojade/isef/index.cfm>.

Yours faithfully,

For the Commission

Margrethe VESTAGER  
Executive Vice-President

## **ANNEX to the decision on case SA.63934 (2021/N)**

### **Guidelines on regional State aid**

*(OJ C 153, 29.04.2021, p.1.)*

### **HUNGARY - Regional aid map applicable from 01.01.2022 to 31.12.2027**

| Zone Code | Zone Name | Maximum aid intensities applicable to regional aid granted to large enterprises <sup>3</sup> |
|-----------|-----------|----------------------------------------------------------------------------------------------|
|-----------|-----------|----------------------------------------------------------------------------------------------|

#### **‘a’ areas**

| NUTS code | Name of NUTS region | Maximum aid intensity (large enterprises) |
|-----------|---------------------|-------------------------------------------|
|           |                     | 1.1.2022 – 31.12.2027                     |
| HU12      | Pest                | 50%                                       |
| HU21      | Közép-Dunántúl      | 30%                                       |
| HU22      | Nyugat-Dunántúl     | 30%                                       |
| HU23      | Dél-Dunántúl        | 50%                                       |
| HU31      | Észak Magyarország  | 50%                                       |
| HU32      | Észak-Alföld        | 50%                                       |
| HU33      | Dél-Alföld          | 50%                                       |

<sup>3</sup> For investment projects with eligible costs not exceeding EUR 50 million this ceiling is increased by 10 percentage points for medium-sized enterprises and 20 percentage points for small enterprises as defined in the Commission Recommendation of 6 May 2003 concerning the definition of micro, small and medium-sized enterprises (OJ L 124, 20.5.2003, p. 36). For large investment projects, the maximum aid intensities for large enterprises also apply to medium-sized and small enterprises. For large investment projects, this maximum aid intensity is subject to adjustment in accordance with paragraph 19(3) of the RAG.